Number 12 *of* 1967

CRIMINAL PROCEDURE ACT 1967

REVISED

Updated to 27 November 2017

This Revised Act is an administrative consolidation of the *Criminal Procedure Act 1967.* It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Legal Metrology (Measuring Instruments) Act 2017* (31/2017), enacted 28 November 2017, and all statutory instruments up to and including *Criminal Justice (Victims of Crime) Act 2017 (Commencement) Order 2017* (S.I. No. 530 of 2017), made 24 November 2017, were considered in the preparation of this Revised Act.

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AN ACT TO ESTABLISH A NEW PROCEDURE FOR THE PRELIMINARY EXAMINATION OF INDICTABLE OFFENCES AND FOR THIS AND OTHER PURPOSES TO AMEND CRIMINAL LAW AND ADMINISTRATION. [13*th June*, 1967]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:—

PART I

Preliminary

Short title.

1.—This Act may be cited as the Criminal Procedure Act, 1967.

Commencement.

2.—Section 3 and Parts II and III shall come into operation on such day as the Minister for Justice by order appoints.

Repeals.

3.—Each of the enactments mentioned in the Schedule is hereby repealed to the extent specified in the third column.

[Interpretation.

4.—(1) In this Act 'the prosecutor' means, in relation to an offence—

(*a*) in Part IA and section 13, the Director of Public Prosecutions, and

(*b*) in Parts II and III, other than section 13—

(i) the Director of Public Prosecutions,

(ii) a person prosecuting the offence at the suit of the Director of Public Prosecutions, or

(iii) a person authorised by law to prosecute the offence.

(2) Notwithstanding subsection (1), references to the prosecutor in Parts IA, II and III shall be construed, in relation to offences for which proceedings may not be **[**instituted or continued except by the Attorney General**]** as references to the Attorney General.**]**

[PART IA

MISCELLANEOUS

[Reference of question of law to Supreme Court.

34.—(1) Where a person tried on indictment is acquitted (whether in respect of the whole or part of the indictment) the Attorney General in any case or, if he or she is the prosecuting authority in the trial, the Director of Public Prosecutions **[**may, without prejudice to the verdict or decision in favour of the accused person, refer a question of law arising during the trial to the Court of Appeal for determination or, in the case of a person who is tried on indictment in the Central Criminal Court, make application to the Supreme Court under Article 34.5.4° of the Constitution to refer a question of law arising during the trial to it for determination**]**.

(2) Where a question of law is referred to **[**the Court of Appeal or the Supreme Court, as the case may be,**]** under subsection (1), the statement of the question shall be settled by the Attorney General or the Director of Public Prosecutions, as may be appropriate, after consultation with the trial judge concerned or, in the case of a Special Criminal Court, with the member of that Court who pronounced the decision of the Court in the trial concerned following consultation by that member with the other members of the Court concerned and shall include any observations which the judge or that member, as may be appropriate, may wish to add.

(3) For the purpose of considering a question referred to it under this section, **[**the Court of Appeal or the Supreme Court, as the case may be,**]** shall hear argument—

(*a*) by, or by counsel on behalf of, the Attorney General or the Director of Public Prosecutions, as may be appropriate,

(*b*) if the acquitted person so wishes, by counsel on his or her behalf or, with the leave of the Court, by the acquitted person himself or herself, and

(*c*) if counsel are assigned under subsection (4), such counsel.

(4)**[**The Court of Appeal or the Supreme Court, as the case may be,**]** shall assign counsel to argue in support of the decision if—

(*a*) the acquitted person waives his or her right to be represented or heard under subsection (3)(*b*), or

(*b*) notwithstanding the fact that the acquitted person exercises his or her right to be represented or heard under subsection (3)(*b*), the Court considers it desirable in the public interest to do so.

(5)**[**The Court of Appeal or the Supreme Court, as the case may be,**]** shall ensure, in so far as it is reasonably practicable to do so, that the identity of the acquitted person in proceedings **[**referred to in this section**]** is not disclosed in connection with the proceedings unless the person agrees to the use of his or her name in the proceedings.

[(6) If the acquitted person wishes to be represented in proceedings referred to in this section before the Court of Appeal or the Supreme Court, as the case may be, and a legal aid (appeal) certificate, or as the case may be, a legal aid (Supreme Court) certificate, is granted under subsection (7) or is deemed to have been granted under subsection (8), he or she shall be entitled to free legal aid in the preparation and presentation of any argument that he or she wishes to make to the Court of Appeal or the Supreme Court, as the case may be, and to have a solicitor and counsel assigned to him or her for that purpose in the manner prescribed by regulations under section 10 of the Criminal Justice (Legal Aid) Act 1962.**]**

[(7) The acquitted person may, in relation to proceedings referred to in this section, apply for a legal aid (appeal) certificate to the Court of Appeal or a legal aid (Supreme Court) certificate to the Supreme Court, as the case may be, either—

(a) by letter to the registrar of the Court of Appeal or, as the case may be, the registrar of the Supreme Court, setting out the facts of the case and the grounds of the application, or